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The State Secretary for Health, Welfare and Sport,
P.O. Box 20350
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Date

July 27, 2023

Our reference

z2023-02457

Your letter dated

April 26, 2023

Contact person

Your reference

3582893-1046898-WJZ

Subject

Supplementary advice on the draft bill for improving the availability of youth care

Dear Mr. Van Ooijen,

In a letter dated April 26, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft bill for improving the availability of youth care (hereinafter: the draft).

The draft bill was previously submitted to the AP for advice (reference advice: z2020-12810) and has been resubmitted due to changes in the proposed provisions regarding the processing of personal data. This supplementary advice from the AP pertains to the amended part and does not affect the previously given advice.

The AP assesses whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

- the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (1. suitability);
- the objective not being reasonably achievable in a different way that less infringes on the fundamental rights of the data subjects (2. subsidiarity);
- the interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (3. proportionality);
- the draft being sufficiently clear and precise regarding the scope and being predictable in its application (4. legal certainty);

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the draft sufficiently indicating under what circumstances and conditions personal data can be processed, thereby ensuring that the interference is limited to what is strictly necessary (5. substantive and procedural safeguards); and

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the draft being binding under national law (6. bindingness under national law).

Advice

The AP has objections regarding the draft that concern the substantiation of the necessity to use pseudonymized data (point 2) and the delineation of criminal data in the law (point 4).

Scope of the draft

The draft aims, with the changes compared to the previous version, to assign new research and supervisory tasks to the Dutch Healthcare Authority (NZa). Based on the draft, the NZa can conduct system research into the availability of youth care. Additionally, the NZa has the task of early signaling risks in the context of the availability of care. Finally, the NZa is tasked with overseeing the rules regarding transparent financial operations and the public annual accountability. For these three tasks, it may be necessary to process personal data.

Advice

Less intrusive alternatives for processing personal data

The draft provides in Article 71d a legal basis for the processing of personal data by the NZa in the context of the system research. For this research, the NZa can request personal data of minors and their parents. This also concerns the processing of health and criminal data. The NZa conducts this research to map the availability of youth care. Insight into this can assist municipalities in fulfilling their tasks and is relevant for the State for the functioning of the youth system as a whole, according to the draft. The explanatory memorandum argues why pseudonymized data is necessary and anonymized data is insufficient: "With anonymized data, it is not possible to link the data about a minor across different files or over different periods."¹

Additionally, the explanatory memorandum states: "It has been explored whether the NZa (...) could use the statistics or reports from the Central Bureau of Statistics (CBS), or the underlying data. The exploration concluded that the use of these data is insufficient. Necessary data is missing."²

The processing basis concerns data that interfere with the private life of minors and their parents for the purpose of gaining insight into the availability of youth care. It is conceivable that the availability of youth care could also be made clear through sample-based research.

1 Page 30 of the explanatory memorandum of the draft.

2 Page 31 of the explanatory memorandum of the draft.

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to refer to, for example, the average waiting time or the average number of individuals on the waiting list. The explanatory memorandum does outline that statistics from the CBS have been explored; however, it does not indicate whether it has also been considered whether it is possible to make the desired information available through the CBS. The mentioned options are alternatives where data is used at an aggregated level. This could lead to the same or a similar level of insight with a lesser infringement on the fundamental rights of clients and their parents. In light of the subsidiarity of the processing, the explanation should include why these less intrusive infringements would not be (sufficiently) effective.

The AP advises providing a more detailed explanation of why specifically the pseudonymized health and criminal justice data are necessary for insight into the availability of youth care.

Breaking the confidentiality obligation

The application of Article 71d results in a breach of the confidentiality obligation that rests on youth care providers. The confidentiality is also considered of great importance in disciplinary law. This breach leads to a significant intrusion into the private lives of minors and their parents. Only significant societal interests can justify this breach. This consideration has not been made clear in the explanatory memorandum.

The AP advises addressing the breach of the confidentiality obligation of youth care providers in the explanatory memorandum.

Criminal justice data and health data

Article 71d of the draft provides a legal basis for processing personal data for the purpose of the system investigation. This personal data includes, among other things, health data and data of a criminal nature. The explanatory memorandum of the draft specifies the personal data further on page 30: "(...) data about health (type of provision) and data of a criminal nature (involvement of youth probation)."

The basis for processing in Article 71d of the draft is therefore much broader than is necessary according to the explanation. Since it concerns special and sensitive data, it is important to delineate the processing as precisely as possible, even in the law. Without delineation in the law, the impression may arise that the processing of other criminal justice data or health data is also justified. The delineation of the data to be processed is one of the measures or safeguards that are necessary, as referred to in Article 9, first paragraph, part g, and Article 10 of the GDPR.

The AP advises including in the text of the law of Article 71d which health data and which criminal justice data may be processed.

3 In accordance with the statutory task of the CBS (Article 3, second paragraph, under a, Act on the Central Bureau of Statistics).

4 See, among others, Article 7.3.11 of the Youth Act and Article 5.3.3 of the Social Support Act 2015.

5 Page 30 of the explanatory memorandum of the draft.

6 Also considering Article 2.23 of the Guidelines for Legislation.

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Retention Period

The explanatory memorandum states that the NZa adheres to retention and destruction periods as mentioned in the selection list.⁷

The system investigation processes (pseudonymized) health and criminal justice data of clients and their parents. The draft does not provide reasons for the choice of the retention and destruction periods from the selection, while these periods pertain to a long duration and also apply to data concerning health or of a criminal nature.

The AP considers it advisable to establish specific retention periods in the legislation or to elaborate in the explanatory memorandum which general periods apply according to the selection list and why these are also adequate for these processes.

Reference to Article 8 of the European Convention on Human Rights (ECHR)

In paragraph 7 of the explanatory memorandum of the draft, it is argued why the foundations of the draft fit within the GDPR, Article 8 ECHR, and Article 10 of the Constitution.

The AP notes that a reference to Article 8 of the Charter of Fundamental Rights of the European Union is incorrectly absent. The reference to the Charter is appropriate, as this article directly concerns the right to the protection of personal data and does not more generally pertain to the broader right to

respect for private and family life, as laid down in Article 7 of the Charter and the corresponding Article 8 of the ECHR. When including a passage about Article 8 of the Charter, it may be considered to limit or replace the passage that refers to Article 8 of the ECHR.

The AP advises to amend the explanatory memorandum on this point.

Reuse of Client Data

According to the explanatory memorandum, “reuse of obtained client data for other Youth Law tasks is not possible.”⁸

This is not in accordance with Article 71e of the draft. Article 71e enables the NZa to carry out processes for all tasks. Moreover, a prohibition on the reuse of data would mean that the NZa would have to request client data again for new system investigations and/or other tasks. This leads to more processing and is not in line with the principle of data minimization.

The AP advises to align this part of the explanatory memorandum with Article 71e of the draft.

7 Page 50 of the explanatory memorandum of the draft.

8 Page 50 of the explanatory memorandum of the draft.

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Workload of the AP

The AP notes that the draft is not expected to necessitate additional efforts by the AP.

Disclosure of the Advice

This assessment will be made public on the AP's website after four weeks. Unless otherwise notified, it assumes that there are no objections to this.

Sincerely,

Authority for Personal Data,

Monique Verdier

Vice Chair